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Case Number: 25STCP02006 Hearing Date: September 28, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September

28, 2026

CASE NUMBER: 25STCP02006

CASE NAME: Choung, et al. v. Lin, et al.

MOVING PARTY: Plaintiff Anna Choung

OPPOSING PARTY: Defendant Jesse Lin

PROCEEDING: MOTIONS TO COMPEL

FURTHER RESPONSES (4)

RULING SUMMARY: Choung's motion to compel further responses to Requests for Admission, Set One, is granted as to Nos. 9, 11, 19, 20, 21, 22, 23, 27, 28, 30, 32, 37, 38, 39, 40, 41, 42, 44, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 113, 114, 115, 116, 118, 119, 120, 121, 122, 123, and 124.

Choung's motion to compel further responses to Form Interrogatories, Set One, is granted as to Nos. 2.11, 2.12, 14.2, 15.1, and 17.1.

Choung's motion to compel further responses to Special Interrogatories, Set One, is granted as to Nos. 30, 34, 48, 49, 50, 51, 52, 53, 54, and 55.

Choung's motion to compel further responses to Requests for Production, Set One, is granted as to No. 17, 18, and 22, and otherwise denied.

Lin is ordered to serve verified supplemental responses to these requests that contain all mandatory language for discovery responses pursuant to the applicable provisions of the Code of Civil Procedure. The verified supplemental responses must be served within 30 days of this Ruling; in addition, Lin must produce within 30 days of this Ruling documents responsive to those RPDs as to which the Court granted Choung's motion to compel.

The documents shall be produced pursuant to the parties' protective order, where applicable.

Background

This is a breach of contract action arising out of plaintiffs Anna Choung's ("Choung") and ACPC Clayton, Inc.'s ("ACPC") (together, "Plaintiffs") claim to a 50-percent ownership and co-management interest in an accounting enterprise operated under the "Avano" brand, which Plaintiffs allege they jointly established with defendant Jesse Lin ("Lin") and his management entity, defendant Palmerston, LLC ("Palmerston") (together, the "Lin Defendants"), through two California limited liability companies, defendant Avano, LLC and defendant Avano Tax, LLC (collectively, "Avano").

Plaintiffs allege that, on May 22, 2025, Lin delivered an ultimatum demanding Choung accept a restructuring of the partnership on terms that would strip her of management rights and reduce her economic interest below the agreed 50-50 split. Plaintiffs allege Choung rejected the proposal, and Lin Defendants thereafter unilaterally locked her out of all Avano platforms and systems.

On May 29, 2025, Plaintiffs filed their complaint, alleging causes of action for (1) breach of oral contract (against the Lin Defendants), (2) breach of implied contract (against the Lin Defendants), (3) breach of the implied covenant of good faith and fair dealing (against the Lin Defendants), (4) breach of fiduciary duty (against the Lin Defendants), (5) conversion (against the Lin Defendants), (6) dissolution of general partnership (against all Defendants), (7) dissolution of limited liability companies (against all Defendants), (8) accounting (against the Lin Defendants), (9) declaratory relief (against the Lin Defendants) and (10) injunctive relief (against the Lin Defendants).

On July 2, 2025, the Lin Defendants filed a cross-complaint, alleging causes of action against Plaintiffs, Avano and Roes 1-20 for (1) breach of oral contract, (2) breach of implied contract, (3) breach of fiduciary duty, (4) breach of covenant of good faith and fair dealing, (5) conversion, (6) civil theft, (7) restitution, (8) declaratory relief and (9) injunctive relief.

Choung moves to compel Lin's further responses to Requests for Admission, Set One, Requests for Production, Set One, Special Interrogatories, Set One, and Form Interrogatories, Set One. Lin opposes the motion.

LEGAL STANDARDS

A.

Requests
for Admission

California law requires a responding party to respond to each propounded request for admission with either a substantive answer or an objection to the particular request. (Code Civ. Proc. §2033.210, subd. (b).) Each substantive answer must: "(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party; (2) Deny so much of the matter involved in the request as is untrue; (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge." (Code Civ. Proc. § 2033.220, subd. (b).) "If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Code Civ. Proc. § 2033.220, subd. (c).)

A propounding party may move for an order compelling further responses to requests for admission if any of the following apply: "(1) An answer to a particular request is evasive or incomplete; or (2) An objection to a particular request is without merit or too general." (Code Civ. Proc. § 2033.290, subd. (a).)

B.

Requests for Production

Under Code of Civil Procedure section 2031.310, the Court may order a responding party to serve a further response to a request for production when the Court finds that (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general.¿

To prevail, the party moving for the order must first offer specific facts demonstrating “good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden “is met simply by a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) If “good cause” is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)¿ “A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Code Civ. Proc. § 2031.230.)¿¿

C. Interrogatories

A party to whom interrogatories are served must respond in writing and under oath by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party’s option to produce writings; or (3) an objection to the particular interrogatory. (Code Civ. Proc. § 2030.210, subds. (a)(1)-(3).) “Each answer in response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (Code Civ. Proc. § 2030.220, subd. (b).) “If the responding party

does not have personal knowledge sufficient to respond fully to the interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc. § 2030.220, subd. (c).)zzz

A party may move for an order compelling a further response to interrogatories where: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under Code of Civil Procedure section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection is without merit or is too general. (Code Civ. Proc. § 2030.300, subds. (a)(1)-(3).)

MOTION TO Compel further responses

I.

Objections

Choung submits two evidentiary objections to the Declaration of Shauna W. Avrith filed in support of Lin's Opposition to Motion to Compel Further Responses to Requests for Admission, Set One. Plaintiff's objections are overruled.

Choung submits two evidentiary objections to the Declaration of Shauna W. Avrith filed in support of Lin's Opposition to Motion to Compel Further Responses to Form Interrogatories, Set One. Plaintiff's objections are overruled.

II.

Discussion

Choung moves the Court for an order compelling Lin to serve further verified, Code-compliant responses to Choung's Form Interrogatories, Set One (“FROGs”), Special Interrogatories, Set One (“SROGs”), Requests for Production, Set One (“RPDs”), and Requests for Admission, Set One (“RFAs”).

Additionally, Choung requests monetary sanctions in the total amount of \$20,212.40 against Lin and his counsel of record, jointly and severally, per

motion.

A.

Requests for Admission

Choung argues Lin's responses to

RFAs Nos. 9, 11, 12, 19, 20, 21, 22, 23, 27, 28, 30, 32, 37, 38, 39, 40, 41, 42, 43, 44, 65, 70, 73, 76, 79, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 101, 102, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, and 137, are evasive and incomplete, and that the objections are without merit.

In her reply, Choung withdraws the

motion as to Nos. 12, 43, 65, 70, 73, 76, 79, 101, 102, 117, and 137 (Rep., p. 2.); as such, the RFAs remaining in dispute are Nos. 9, 11, 19, 20, 21, 22, 23, 27, 28, 30, 32, 37, 38, 39, 40, 41, 42, 44, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 113, 114, 115, 116, 118, 119, 120, 121, 122, 123, and 124.

i.

RFAs Nos. 9, 11, 19- 23, 27, 28, 30, 32, 37-42, 44, 82-96, 113-116, 118-124

Lin objects to these requests on

the grounds that "Avano Enterprise" is argumentative and contrived for purposes of litigation, and that the request is vague, ambiguous, and unintelligible.

Lin further responds that he is unable to admit or deny each request as framed.

Additionally, Lin objects on the grounds the requests assume facts and calls for a legal conclusion. (See Separate Statement.)

Lin's responses are insufficient

and his objections are meritless. A party who asserts lack of information or knowledge as a reason for failing to admit must state in the answer "that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Code Civ. Proc. § 2033.220, subd. (c).) Lin's responses fail to include a reasonable inquiry statement, and his supplemental responses do not cure the defect.

Further, Lin's objection that the

term "Avano Enterprise" is argumentative and contrived cannot be reconciled

with the fact that Lin admitted or denied dozens of other requests using the identical term. Additionally, Lin's objections on the grounds of vague and ambiguous are meritless. A party responding to a discovery request is obligated to attempt a good-faith response even where the request contains some ambiguity. (*Deyo v. Kilbourne* (1975) 84 Cal.App.3d 771, 783.)

Finally, objections on the grounds the requests call for legal conclusions are inapplicable. "Any party may obtain discovery ... by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) These requests are properly related to the duties the parties owed and the propriety of dissolution.

Accordingly, Choung's motion to compel further responses is granted as to RFA Nos. 9, 11, 19, 20, 21, 22, 23, 27, 28, 30, 32, 37, 38, 39, 40, 41, 42, 44, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 113, 114, 115, 116, 118, 119, 120, 121, 122, 123, and 124. Lin must provide verified Code-compliant responses to these RFAs.

ii.

Sanctions

Choung seeks sanctions in the amount of \$6,072.10 against Lin and his counsel of record, jointly and severally, consisting of 5.90 hours of attorney time at an hourly rate of \$1,019 per hour and a \$60.00 filing fee. (Lau Decl., ¶ 21.) The Court finds the hourly rate unreasonable. While Choung's counsel cites the Laffey Matrix for attorneys with 11-19 years of experience having a rate of \$1,019, counsel does not state his experience in his declaration, and also fails to explain why an attorney with less experience and a lower hourly rate could not have prepared the motions. Further, the hours requested are unreasonable, as there are four motions that make similar arguments.

Based on the Court's experience, the Court awards monetary sanctions in the reduced amount of \$2,460.00, consisting of four hours of attorney time at an hourly rate of \$600.00, and the

\$60.00 filing fee, against Lin and his counsel jointly and severally. Lin's request for sanctions is denied.

B.

Requests for Production

Choung argues Lin's responses to RPD Nos. 8, 9, 14, 16, 17, 18, 19, 22, and 23, are evasive and incomplete, and that the objections are meritless.

i.

RPD Nos. 8, 9, 14, 16, 19, 23

Lin objects to these requests on the grounds that the phrase "Avano Enterprise" is argumentative and contrived, and the request is vague, ambiguous, and unintelligible as framed. Lin further objects on the grounds the requests prematurely call for disclosure of expert opinion and calls for production of documents in Choung's possession. (Separate Statement, pp. 4-7, 11-12.)

Lin's supplemental responses now supply Code-compliant answers for Nos. 8, 16, 19, and 23, with representations of Lin's inability to comply and affirmation that a diligent search and reasonable inquiry have been made. (Avrith Decl., ¶ 10, Ex. H.) For Nos. 9 and 14, Lin's supplemental responses include statements of compliance identifying responsive documents by Bates number. (Avrith Decl., ¶ 10, Ex. H.) Therefore, no further responses are required.

Accordingly, Choung's motion to compel further is denied as to RPDs Nos. 8, 9, 14, 16, 19, and 23.

ii.

RPD No. 22

Lin objects on the grounds the request is vague, ambiguous, unintelligible, and compound. (Separate Statement, p. 12.)

Here, Lin's response is insufficient. Choung has shown good

cause. Each demand is relevant to the
lockout, the ownership dispute, the alleged diversion of funds through related
entities, and the dissolution claim. If “good cause” is shown by the moving
party, the burden shifts to the responding party to justify any objections made
to document disclosure. (Kirkland v. Superior Court (2002) 95
Cal.App.4th 92, 98.)² Lin has not done so here.

Additionally, Lin fails to affirm
a diligent search and reasonable inquiry has been made in an effort to comply
with Choung's request. Further, Lin's
objections on the grounds of vagueness and ambiguity are meritless. A
party responding to a discovery request is obligated to attempt
a good-faith response even where the request contains some ambiguity. (Deyo,
supra, 84 Cal.App.3d at p. 783.) Further, the request is not
compound, as it seeks documents related to a single subject.

Accordingly, Choung's motion to
compel further is granted as to RPD No. 22.

iii.
RPD Nos. 17, 18

Lin objects on the grounds the
phrase “Avano Enterprise” is argumentative and contrived for purposes of
litigation, that the request prematurely calls for disclosure of expert opinion
and calls for production of documents in Choung's possession. Lin further
responds he has no documents in his possession, custody, or control responsive
to this request. (Separate Statement,
pp. 8-10.)

Lin's supplemental responses are
Code-compliant and agree to produce all documents responsive to these demands.
(Avrith Decl., ¶ 10, Ex. H.) However,
Lin's response reflects a future promise and not completed production. To the extent production has not been
completed, Lin shall complete production and serve a verified statement of
compliance confirming production is complete within 30 days of this Ruling.

Accordingly, Choung's motion to
compel further is granted as to RPDs Nos. 17 and 18.

iv.

Sanctions

Choung seeks sanctions in the amount of \$4,339.80 against Lin and his counsel of record, jointly and severally, consisting of 4.20 hours of attorney time at an hourly rate of \$1,019 per hour and a \$60.00 filing fee. (Lau Decl., ¶ 21.) The Court finds the hourly rate unreasonable. While Choung's counsel cites the Laffey Matrix for attorneys with 11-19 years of experience having a rate of \$1,019, counsel does not state his experience in his declaration or explain why an attorney with a lower hourly rate could not have prepared the motion papers. Further, the hours requested are unreasonable, as there are four motions that make similar arguments.

Based on the Court's experience, the Court awards monetary sanctions in the reduced amount of \$1,860.00, consisting of three hours of attorney time at an hourly rate of \$600.00, and the \$60.00 filing fee, against Lin and his counsel jointly and severally. Lin's request for sanctions is denied.

C.

Form Interrogatories

Choung argues Lin's responses to FROGs Nos. 2.11, 2.12, 12.6, 14.2, 15.1, 17.1 are evasive and incomplete, and that Defendant's objections are meritless. In reply, Plaintiff withdrew the motion as to No. 12.6. (Rep., p. 2.)

i.

FROGs Nos. 2.11, 2.12, 14.2

Lin objected to each interrogatory on the grounds it was vague, ambiguous, and unintelligible as to the term "INCIDENT". Lin further objects on the grounds the interrogatories call for information that is neither relevant or reasonably calculated to lead to the discovery of admissible evidence and was overly broad. (Separate Statement, pp. 4-6.)

Lin's vague and ambiguous objections are meritless. A party responding to a discovery request

is obligated to attempt a good-faith response even where there is some ambiguity. (See Deyo, supra, 84 Cal.App.3d at p. 783.) Requests relating to the “incident” are not so vague and ambiguous that Lin is unable to attempt a good-faith response.

Accordingly, Choung’s motion to compel further is granted as to FROGs Nos. 2.11, 2.12, and 14.2.

ii.

FROGs No. 15.1

Lin objects to this interrogatory on the grounds it is overbroad, unduly burdensome, and harassing, and premature given discovery has just begun. (Separate Statement, p. 7.)

Lin’s objections are meritless and his response is insufficient. The Court finds the interrogatory is not overbroad. Further, Lin’s answer to subpart (b) is answered only by cross-reference, and subpart (c), as well as Lin’s supplemental response, fails to answer the interrogatory in its entirety.

Accordingly, Choung’s motion to compel further is granted as to FROGs No. 15.1.

iii.

FROGs No. 17.1

Lin objects to this interrogatory as overbroad, unduly burdensome, oppressive, and a misuse of the discovery process, based on the propounded 140 RFAs. (Separate Statement, p. 10.)

On their face, Lin’s responses are materially incomplete. This interrogatory seeks information regarding unqualified admissions in response to Choung’s requests for admission. Lin gave non-admission responses to roughly 100 requests but addressed only about 30 in his response. (See Separate Statement, pp. 10-17.)

Lin's objection on the ground of undue burden is not well taken. An objection grounded in burden must be "sustained by evidence showing the quantum of work required," and the objecting party must supply that evidence. (See *Williams v. Superior Court* (2027) 3 Cal. 5th 531, 549.)

Lin did not submit evidence showing the work required to respond to Choung's interrogatories.

Accordingly, Choung's motion to compel further is granted as to FROGs No. 17.1.

iv.

Sanctions

Choung seeks sanctions in the amount of \$5,868.30 against Lin and his counsel of record, jointly and severally, consisting of 5.70 hours of attorney time at an hourly rate of \$1,019 per hour and a \$60.00 filing fee. (Lau Decl., ¶ 21.) The Court finds the hourly rate unreasonable. While Choung's counsel cites the Laffey Matrix for attorneys with 11-19 years of experience having a rate of \$1,019, counsel does not state his experience in his declaration or explain why an attorney with a lower hourly rate could not prepare the motion papers. Further, the hours requested are unreasonable, as there are four motions that make similar arguments.

Based on the Court's experience, the Court awards monetary sanctions in the reduced amount of \$1,860.00, consisting of three hours of attorney time at an hourly rate of \$600.00, and the \$60.00 filing fee, against Lin and his counsel jointly and severally. Lin's request for sanctions is denied.

D.

Special Interrogatories

Choung argues Lin's responses to SROGs Nos. 30, 34, 48, 49, 50, 51, 52, 53, 54, and 55, are evasive and incomplete, and that Defendant's objections are meritless.

i.

SROGs Nos. 30, 34

Lin objects to these interrogatories on the grounds the phrase “Avano Enterprise” is argumentative and contrived, and that it calls for information within Choung’s knowledge. (Separate Statement, pp. 3-4.) Lin further responded he will produce all non-privileged documents in his possession, custody, or control responsive to the request. (Separate Statement, pp. 4, 5.)

Lin’s response is evasive and incomplete. First, as discussed above, Lin’s objection that “Avano Enterprise” is argumentative and contrived is not reconciled with the fact Lin has responded to other discovery requests including this term. Further, Lin did not identify any responsive documents, only responding he would produce documents. A promise to produce documents is not the identification the interrogatory requires.

Accordingly, Choung’s motion to compel further responses is granted as to SROGS Nos. 30 and 34.

ii.

SROGs Nos. 48-51

Lin objects to No. 48 for prematurely calling for disclosure of expert opinion. Lin further responds damages estimates will be disclosed after Lin has had adequate time to conduct discovery and investigation. Lin incorporates No. 48 into his responses of Nos. 49-51. (Separate Statement, pp. 5-8.)

A party may not defer entirely to a future calculation; it must answer to the extent of the information reasonably available and cannot plead ignorance to information obtainable from sources under its control. (Code Civ. Proc., § 2030.220, subds. (a)–(c); Deyo, *supra*, 84 Cal.App.3d at p. 782.)

Further, the objections on the ground of premature disclosure of expert opinion are inapplicable here. “An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.” (Code Civ. Proc. § 2030.010, subd. (b).)

Accordingly, Choung's motion to compel further responses is granted as to SROGS Nos. 48-51.

iii.

SROGS Nos. 52-55

Lin objects to No. 52 on the grounds the interrogatory is vague, ambiguous, unintelligible, and compound. Lin cites to No. 52 in response to Nos. 53-55. (Separate Statement, p. 8-11.)

As discussed above, the objections on the ground of vague, ambiguous, unintelligible are inapplicable here, under Deyo. Further, the objection on the ground of compound is inapplicable, as each interrogatory seeks a single subject.

Accordingly, Choung's motion to compel further responses is granted as to SROGS Nos. 52-55.

iv.

Sanctions

Choung seeks sanctions in the amount of \$3,932.20 against Lin and his counsel of record, jointly and severally, consisting of 3.80 hours of attorney time at an hourly rate of \$1,019 per hour and a \$60.00 filing fee. (Lau Decl., ¶ 21.) The Court finds the hourly rate unreasonable. While Choung's counsel cites the Laffey Matrix for attorneys with 11-19 years of experience having a rate of \$1,019, counsel does not state his experience in his declaration or explain why an attorney with less experience and a lower hourly rate could not prepare the motion papers. Further, the hours requested are unreasonable, as there are four motions that make similar arguments.

Based on the Court's experience, the Court awards monetary sanctions in the reduced amount of \$1,260.00, consisting of 2 hours of attorney time at an hourly rate of \$600.00, and the \$60.00 filing fee, against Lin and his counsel jointly and severally. Lin's request for sanctions is denied.

Conclusion

Choung's motion to compel further responses to Requests for Admission, Set One, is granted as to Nos. 9, 11, 19, 20, 21, 22, 23, 27, 28, 30, 32, 37, 38, 39, 40, 41, 42, 44, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 113, 114, 115, 116, 118, 119, 120, 121, 122, 123, and 124.

Choung's motion to compel further responses to Form Interrogatories, Set One, is granted as to Nos. 2.11, 2.12, 14.2, 15.1, and 17.1.

Choung's motion to compel further responses to Special Interrogatories, Set One, is granted as to Nos. 30, 34, 48, 49, 50, 51, 52, 53, 54, and 55.

Choung's motion to compel further responses to Requests for Production, Set One, is granted as to No. 17, 18, and 22, and otherwise denied.

Monetary sanctions are awarded to Choung and against Lin and his counsel, jointly and severally, in the total amount of \$7,440.00.

Lin is ordered to serve verified supplemental responses to these requests that contain all mandatory language for discovery responses pursuant to the applicable provisions of the Code of Civil Procedure. The verified supplemental responses must be served within 30 days of this Ruling; in addition, Lin must produce within 30 days of this Ruling documents responsive to those RPDs as to which the Court granted Choung's motion to compel. The documents shall be produced pursuant to the parties' protective order, where applicable.

Date: September
28, 2026

William
E. Weinberger

Judge,

